

STATE OF NEW YORK

2663--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. SAYEGH, HYNDMAN, DeSTEFANO, WILLIAMS -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to the age limitation for judges

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 23 of the judiciary law, as added by chapter 649 of the laws of 1945, is amended to read as follows:

§ 23. Age limitation on term of judicial office. 1. No person shall hold the office of judge, justice or surrogate of any court, whether of record or not of record, except a justice of the peace of a town ~~or~~, police justice of a village or a judge of a city court outside the city of New York, longer than until and including the last day of December next after ~~he~~ such person shall be seventy years of age, except that a judge or justice in office or elected or appointed to office at the effective date of this section, as to whom no provision limiting ~~his~~ such person's right to hold office to the close of the year following ~~his~~ such person attaining the age of seventy years was applicable prior to the effective date of this section, may continue in office during the term for which ~~he~~ such person was elected or appointed.

2. No person shall hold the office of judge of a city court outside the city of New York longer than until and including the last day of December next succeeding the date when such person shall be seventy-six years of age, except that a judge of a city court outside the city of New York in office or elected or appointed to office at the effective date of this section, as to whom no provision limiting such person's right to hold office to the close of the year following such person attaining the age of seventy-six years was applicable prior to the effective date of this subdivision, may continue in office during the term for which such person was elected or appointed.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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